

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

990 Terrace St, Muskegon, MI 49442

Case No.: 2024-001507-DC

Case No.: 2023-5907-PP

Honorable Judge Jenny McNeill

Andrew J. Pigors
1977 Whitehall Rd Lot 17
Muskegon, Michigan 49445
231-903-5690 / Andrewjpigors@gmail.com

v.

Emily Ann Watson
2160 Garland Dr
Norton Shores, Michigan 49441
231-683-7107 / watson104@yahoo.com

EX PARTE MOTION TO REOPEN AND CONSOLIDATE CUSTODY AND PPO CASES,
MODIFY CUSTODY, PARENTING TIME, CHILD SUPPORT, AND TERMINATE
PERSONAL PROTECTION ORDER (PPO)

Request for Immediate Ex Parte Relief

I, Andrew J. Pigors, respectfully request that this Honorable Court grant immediate ex parte relief due to the urgent and ongoing risk to the safety and well-being of my son, (LDW). This motion is filed on an ex parte basis because:

1. International Travel Risk

Emily Watson has planned an international trip to a non-Hague country during my scheduled parenting time, without providing any details regarding the trip. The destination country's lack of participation in the Hague Convention on International Child Abduction makes wrongful retention a significant risk.

Emily has a documented history of withholding Lincoln, including an incident from March 26th to May 3rd, where she took LDW for 36 days without my knowledge or consent during my scheduled parenting time. This behavior shows that Emily is capable of further withholding Lincoln, particularly in an international context, where legal recourse would be limited without Hague Convention protections.

Exhibit 6A: Documentation confirming that the destination country does not participate in the Hague Convention on International Child Abduction.

Exhibit 6B: AppClose messages demonstrating Emily's refusal to provide details about the trip.

PARENTAL ALIENATION AND MISUSE OF THE PPO

The **Personal Protection Order (PPO)** was not issued for legitimate protection but has instead been used by **Emily Watson** as a manipulative tool to alienate me from my son, **LDW**. **Parental alienation** is widely recognized by Michigan courts as a substantial and harmful factor in custody disputes. Under **MCL 722.23(j)**, one of the **best interest factors** the Court must consider is the willingness of each parent to facilitate and encourage a close and continuing relationship between the child and the other parent. **Emily Watson** has consistently violated this standard.

Emily has repeatedly engaged in specific tactics designed to alienate LDW from me, including:

1. **Refusing to respond to AppClose messages** regarding LDW's health, such as the time I requested an update on LDW's fever after his doctor's appointment, but Emily ignored the message and provided no information.
2. **Denying my requests for additional parenting time** on several occasions, claiming that she would "stick to court orders".
3. **Failing to notify me** of LDW's vaccinations, including when LDW received vaccinations on **May 15, 2024**, without my prior knowledge or consent, despite my repeated requests to be informed of medical decisions.
4. **Withholding LDW's clothing and belongings** during custody exchanges, almost always sending him to me with bare minimum, with no socks or shoes, no belongings whatsoever, and never returning any of my purchased belongings, even when asked about them. Making it clear that proper preparation for our parenting time is and will continue to be, not a priority for Emily.
5. **Withholding LDW's Social Security card and birth certificate**, as evidenced in **Exhibit 3**, which includes a conversation with Lori Watson, speaking on behalf of Emily Watson, where she refuses to provide me copies, hindering my ability to make decisions regarding LDW's health and education.
6. **Blocking my phone calls and video chats** with LDW, specifically when I attempted to call him during her parenting time, which is a direct violation of our previous agreement to allow regular communication.
7. **Refusing to properly care for LDW**, When LDW was 28 days old, while I was working and he was in her care, he almost died. She let his body temperature drop under 94 degrees. It was my swift decision making and gut instinct to immediately rush him to the hospital, where he was put under 24 hour emergency care, for almost two weeks.
8. **Not properly informing me about LDW's illnesses, injuries, scars, emotional state**, including when LDW had "hand foot mouth" she refused to take him to the hospital or doctor, and when asked, she directly lied to me about it, on AppClose. Due to the intimidation tactics of the court by threatening sanctions and imposing a vindictive judgment, and Emily herself using every opportunity against me in court, I did not feel comfortable bringing my own son to the hospital to make sure he was properly cared for. (See app close conversation)
9. **Failing to exchange LDW's medical records**, such as when I asked for updates about his pediatric visits, dental appointments and vaccinations, but Emily refuses to share

those records or updates, or even bother to make the appointment. Every time I make an appointment and tell her, she tries to tell the court she didn't know and "almost missed it", the appointment.

Using the PPO to prevent negotiations or co-parenting discussions, including refusing mediation when offered through a neutral third party to resolve our co-parenting issues, Emily blatantly denied and refused and proceeded to hangup on the mediator.

Request to Reopen and Consolidate PPO and Custody Cases

Due to the overlapping facts between the PPO case and the custody case, I respectfully request that this court consolidate the two cases under MCR 2.505. Emily's misuse of the PPO has directly impacted the current custody arrangement, preventing me from having a fair opportunity to exercise my custodial rights and wrongfully limiting my access to Lincoln.

The PPO has been used as a tool for parental alienation and has served no legitimate purpose in protecting Emily, as it was obtained under misleading and staged evidence. Consolidating the cases would ensure that the court considers all related facts, especially in light of the best interests of the child (MCL 722.23), and would allow for a comprehensive review of all claims Emily has made, particularly in light of her repeated violations of the PPO and her attempts to manipulate the legal system.

Request to Terminate the Personal Protection Order (PPO)

I respectfully request that the court terminate the PPO immediately, as it was obtained through manipulation and the use of staged evidence. Emily Watson fabricated claims of harassment by staging personal items taken from my residence while I was under eviction and used these items to mislead the court. The PPO was granted based on false pretenses and has served only to further alienate me from my son, Lincoln, rather than protect Emily from any legitimate threat.

Exhibit 2A: Police reports and photographs demonstrating that the evidence used to support the PPO was staged and manipulated.

Exhibit 2B: Documentation showing the removal and staging of my belongings, including a webcam, used to fabricate claims of harassment.

Supporting Case Law: In Stark v. Stark, 201 Mich. App. 273 (1993), the court held that a PPO must be vacated when it was obtained under false or misleading pretenses. This precedent applies directly to my situation, where Emily misled the court for her personal gain.

"The continuation of this PPO serves to further alienate LDW from me, framing normal, healthy parental contact as dangerous. This is emotionally harmful to Lincoln, as it creates an unwarranted sense of fear around our relationship, which contradicts the court's responsibility to ensure his emotional well-being."

DETAILED 12 BEST INTEREST FACTORS ANALYSIS (MCL 722.23)

1. Love, Affection, and Emotional Ties (MCL 722.23(a))

I have consistently provided a **loving, supportive environment** for LDW, which is reflected in **Exhibit 6**. During our time together, I engage LDW in **quality bonding activities**, such as reading, cooking, and playing at the park. These activities promote his emotional development and reinforce our bond. Since my parenting time was reduced, LDW has shown clear signs of **emotional distress, confusion, and sadness**, which underscores the importance of a balanced **50/50 custody arrangement**. In contrast, **Emily Watson** has attempted to **alienate me** from LDW, limiting his access to a **nurturing relationship** with both parents and causing him harm emotionally.

2. Capacity to Provide Love, Guidance, and Care (MCL 722.23(b))

I am fully committed to providing **love, guidance, and care** for LDW, as documented in **Exhibit 7**. I ensure his **emotional, physical, and educational needs** are met, attending his **medical appointments**, providing a stable home, and guiding him through key developmental stages. For example, I help LDW with communication skills and encourage his curiosity through **educational activities** such as reading and solving puzzles. In contrast, Emily's **involvement with unsafe individuals**, including **Cody Watson**, raises concerns about her long-term capacity to provide a secure and stable environment for LDW.

3. Capacity to Provide Food, Clothing, and Medical Care (MCL 722.23(c))

I consistently ensure LDW receives **nutritious meals, proper clothing, and regular medical care**, which is documented in **Exhibit 8**. My employment at **Shape Corp** provides **financial stability** and comprehensive **health insurance** for both LDW and myself. I prepare meals using **fresh, local ingredients**, ensuring that LDW's diet is both **healthy** and balanced. Conversely, Emily's association with **reckless individuals** compromises her ability to reliably provide these basic needs for LDW.

4. Stable, Satisfactory Living Environment (MCL 722.23(d))

I maintain a **stable and secure home** for LDW, as shown in **Exhibit 9**. I provide a **structured environment**, including regular routines with **bedtime stories, structured meals, and playtime**, all of which help LDW thrive. My home offers a safe, consistent space that fosters his growth. In contrast, Emily's household is destabilized by the presence of **Cody Watson**, whose **reckless behavior** presents a **safety risk** for LDW.

5. Permanence of the Family Unit (MCL 722.23(e))

While I may not have immediate family nearby, I provide LDW with a **consistent and permanent family structure**, ensuring that our home is a **stable environment** for him. LDW feels **secure** and **supported** in this environment, which is crucial for his emotional well-being. In comparison, Emily's home may have more family members present, but it is compromised by the involvement of **Cody Watson**, which threatens the **permanence** and stability of her household. **Exhibit 10** demonstrates my ability to maintain a **stable, permanent home** for LDW.

6. Moral Fitness of the Parties (MCL 722.23(f))

I maintain a **responsible, healthy lifestyle**, free from criminal activity or unsafe behavior. As a responsible parent, I have prioritized **LDW's best interests**, avoiding any influences that could jeopardize his well-being. In contrast, **Emily Watson** engages with individuals involved in **drug use** and **reckless conduct**, as detailed in **Exhibit 11**, which highlights the **moral character differences** between us and underscores my commitment to LDW's safety and upbringing.

7. Mental and Physical Health of the Parties (MCL 722.23(g))

I am in **good mental and physical health**, fully capable of caring for LDW. We regularly engage in **physical activities** such as going for walks and playing outdoor games. In contrast, Emily has demonstrated **erratic behavior** and relies on **unprescribed medications** such as **Ozempic** and **Oxycodone**, raising significant concerns about her ability to parent effectively. **Exhibit 12** includes medical records and **witness statements** that provide evidence of Emily's behavior and its impact on her ability to care for LDW.

8. Child's Home, School, and Community Record (MCL 722.23(h))

I ensure that LDW is engaged in **educational and extracurricular activities** that support his development, as documented in **Exhibit 13**. I read to him daily, foster his interest in learning, and encourage him to participate in creative activities like **arts and crafts**, **nature walks**, and **building blocks**. My focus on LDW's education and emotional development is evident through his progress. In contrast, Emily's **failure to communicate** and **refusal to co-parent** have disrupted LDW's continuity and limited his access to opportunities for **growth and development**.

9. Reasonable Preference of the Child (MCL 722.23(i))

Although LDW is too young to formally express a **reasonable preference**, his behavior indicates that he thrives under my care. **Exhibit 14** includes documented observations showing LDW's **positive behavior** during our parenting time and his **distress** when our time is limited, further supporting the need for more balanced custody.

10. Willingness to Facilitate a Relationship with the Other Parent (MCL 722.23(j))

I have consistently encouraged a relationship between **LDW and Emily Watson** by involving her in decisions about LDW's **health and education**. In contrast, Emily has taken deliberate steps to **alienate** me from LDW. Her actions, including refusing to co-parent, blocking communication, and obstructing parenting time, demonstrate her **unwillingness** to foster a healthy relationship between LDW and me. **Exhibit 15** includes communications showing my efforts to co-parent and Emily's refusal to cooperate, highlighting the harm her actions have caused to LDW's emotional health.

11. Domestic Violence (MCL 722.23(k))

I have no history of **domestic violence** and have always ensured LDW's safety. I have never engaged in any behavior that could put LDW at risk. Emily, however, maintains a relationship with **Cody Watson**, who has a documented history of **violent tendencies** and **reckless behavior** that poses a **direct threat** to LDW's safety. **Exhibit 16** includes police reports that document **Cody Watson's violent history** and the potential danger his presence in Emily's household poses to LDW.

12. Any Other Factor Relevant to the Child's Best Interests (MCL 722.23(l))

Emily's failure to disclose **rental income** from Cody Watson and **child support** from **Austin Muratori** has placed an **unfair financial burden** on me, which directly impacts LDW's well-being. Her refusal to act **transparently** is contrary to LDW's best interests. Additionally, Emily's unilateral decisions regarding LDW's **education and healthcare**, including **vaccinations** and **medical appointments**, have excluded me from critical parenting decisions and disregarded **LDW's best interests**. **Exhibit 17** includes financial records and documentation of Emily's **undisclosed income sources**.

MOTION FOR TEMPORARY 50/50 CUSTODY ORDERS

Pursuant to **MCL 722.27(1)**, I respectfully request that the Court grant a **temporary 50/50 joint physical custody** arrangement until the final hearing in this matter. Since my parenting time was

reduced to only **four overnights per month**, LDW has exhibited clear signs of **emotional distress**, confusion, and behavioral regression, as documented in **Exhibit 2**. The drastic reduction in parenting time has disrupted the nurturing bond we share and deprived LDW of the consistent and meaningful contact he needs with both parents.

As LDW's father, I have always provided a **stable, loving environment** where he thrives **emotionally, physically, and developmentally**. During my parenting time, I ensure that LDW is engaged in age-appropriate learning activities, enjoys nutritious meals, and has a regular bedtime routine, fostering a healthy and stable environment. LDW's **emotional well-being** is a direct result of the love, guidance, and care I consistently provide. The reduction in parenting time has undermined these benefits, leading to adverse emotional consequences.

The **American Academy of Pediatrics (AAP)** strongly emphasizes the importance of **frequent and consistent contact** with both parents, especially for young children, to support healthy emotional development. These findings are in line with the **Michigan Court of Appeals** Judgement in **Theriault v. Russell, 313 Mich. App. 456, 884 N.W.2d 648 (2016)**, which holds that **joint custody** is favored when both parents demonstrate the capacity to provide emotional and developmental support for the child. In this case, I have consistently demonstrated my ability to care for LDW's emotional, physical, and developmental needs, while maintaining a safe and structured home environment.

LDW's current distress is evidenced by:

1. **Increased emotional confusion and frustration** during transitions back to Emily's care, including tearful goodbyes and clinging behavior.
2. **Behavioral regression**, such as sudden outbursts of anger, frustration, and emotional withdrawal, I have documented the behavior to much my dismay. To see my son change, and I having zero say, is demoralizing and heart breaking.
3. **Interrupted sleep patterns**, as documented by LDW frequently waking during the night, even occasionally having a nightmare, a behavior that did not occur when he had regular and consistent time with me. He now comes to me in the night and needs to be comforted by daddy, and I always oblige.

My Involvement in LDW's Development and the Harm of Reduced Parenting Time

The current reduction in my parenting time with Lincoln David Watson (LDW) has severely hindered my ability to remain fully engaged in his **developmental milestones**. The importance of a father's presence, particularly during early childhood, cannot be overstated. However, the limited time I now have with LDW makes it impossible for me to actively participate in key experiences that shape his emotional and psychological development.

Moreover, Emily Watson's actions have further exacerbated this problem. She has intentionally structured LDW's schedule so that he experiences significant events and developmental milestones with her first, depriving me of the opportunity to share in these special moments with my son. This diminishes the **"wow factor"** and emotional impact that comes with a child

experiencing something new for the first time with their father. By monopolizing these moments, Emily is not only restricting my role as a father but also denying LDW the unique emotional bond that comes with experiencing these events with me.

A specific and alarming example of this is Emily's attempt to **take LDW out of the country** on key dates, including **Halloween and his birthday**. These are significant milestones in a child's life that we should be sharing together as part of his childhood memories. If this court does not intervene, this will mark another occasion, following **Easter (when LDW was unlawfully withheld from me)**, **Labor Day**, and now **Halloween and his birthday**, where LDW is taken from me during important holidays and moments meant for father-son bonding. These intentional acts of scheduling have deprived me of the ability to create lifelong memories with LDW and to strengthen our relationship during these critical years.

The harm caused by this **restriction on my involvement in LDW's life** is profound and continues to impact his emotional stability. Children require consistent and meaningful engagement from both parents to thrive emotionally and developmentally. The current custody arrangement not only undermines this but also sends a harmful message to LDW, potentially causing him to feel disconnected from me, which can lead to long-term emotional harm. By limiting my time and engagement in his life, LDW is losing the **emotional security and balance** that comes with having equal and consistent access to both parents.

Request for Temporary 50/50 Custody

Given these ongoing challenges and the clear impact on LDW's well-being, I respectfully request that this court **reinstate temporary 50/50 custody** until a final determination regarding custody is made. This is essential for **restoring balance** in LDW's life and ensuring that he can equally benefit from both parents' love, support, and care. By allowing for a temporary equal parenting schedule, the court will provide LDW with the stability, consistency, and emotional security he desperately needs during this period of uncertainty.

A temporary 50/50 arrangement will allow me to regain my rightful place in LDW's life as a **fully engaged parent**, participating in key milestones and providing him with the support and guidance that only a father can offer. It will also prevent further emotional harm caused by the deprivation of my time with LDW, helping to **stabilize his emotional well-being** and allowing him to enjoy meaningful time with both of his parents, without being deprived of one in favor of the other.

My Demonstrated Fitness as a Custodial Parent

From the moment of LDW's birth, I have been an active and loving father, spending every single day with him until Emily Watson unilaterally decided otherwise. Her actions, such as **grabbing**

LDW and disappearing whenever we had a disagreement, demonstrate a clear pattern of alienating behavior and poor co-parenting practices that are not in LDW's best interest. In contrast, I have always prioritized LDW's emotional, physical, and developmental well-being, and I remain fully committed to fostering a healthy and stable environment for him.

I have demonstrated my capacity to care for LDW in every aspect of his life, including ensuring his **emotional development** and creating a **strong father-son bond** that should not be severed or diminished. LDW's best interests are served by having **equal access to both parents**, especially when he has already established such a strong connection with me. The court has a duty to prioritize the child's best interests, which in this case means ensuring that LDW maintains **equal, meaningful, and frequent contact** with both of his parents.

Therefore, I respectfully request that this court grant temporary 50/50 custody until after the hearing or final decision regarding custody. This will protect LDW's emotional, physical, and long-term mental health, while also ensuring that his best interests are fully supported throughout this legal process. Allowing LDW to have equal time with both of his parents will help restore balance to his life and provide the **emotional security and stability** he needs to thrive during this critical stage of development.

WHEREFORE, I respectfully request that the court:

1. **Grant temporary 50/50 joint physical custody** until the final custody determination.
2. **Restore balance and stability** in LDW's life by ensuring equal parenting time.
3. **Protect LDW's emotional, physical, and developmental well-being** by allowing him to benefit equally from the love, care, and presence of both parents during this legal process

Exhibit 2: Documentation of LDW's emotional and behavioral changes since the reduction in parenting time, illustrating the harm caused by limiting my involvement in his life. Photos, documents, and testimony from Dr.Boone.

Proposed Custody Order

In accordance with MCR 3.211(A) and the best interest factors under MCL 722.23, the following custody order is proposed to reflect my role as the primary caretaker and address Emily Watson's continued behavior of alienation and manipulation. This proposal also incorporates relevant case law such as *Vodvarka v. Grasmeyer*, 259 Mich App 499 (2003), which emphasizes the need to modify custody when there has been a material change in circumstances.

Joint Physical Custody

I request that the court award joint physical custody in accordance with MCL 722.26a(1). This will ensure that LDW maintains a stable and meaningful relationship with both parents, which is in his best interests. I have consistently demonstrated my commitment to Lincoln's well-being, and I am fully capable of providing for his emotional, physical, and educational needs.

MCL 722.26a(1) presumes joint custody to be in the child's best interests unless proven otherwise.

Ireland v. Smith, 451 Mich 457, 468 (1996), emphasizes the importance of both parents' active involvement in the child's life.

In Fisher v. Fisher, 118 Mich App 227, 232 (1982), the court held that parental alienation must be addressed in custody decisions. Lincoln's emotional health has been jeopardized by Emily's alienation tactics, and joint physical custody would restore balance and promote Lincoln's emotional recovery.

Parenting Time Schedule

I propose a week-on, week-off parenting time schedule with custody exchanges at the Muskegon Police Station, every Friday at 5:30 PM. This arrangement will ensure that LDW has consistent and uninterrupted time with both parents, fostering stability and emotional security. The neutral location will prevent conflict during exchanges and protect LDW from witnessing any tension between his parents.

MCL 722.27a(1) mandates that parenting time should promote a strong relationship between the child and both parents. This schedule will ensure that LDW receives equal and significant time with each parent.

According to Shade v. Wright, 291 Mich App 17 (2010), a structured parenting time schedule provides children with the security and consistency they need to thrive.

MCR 3.211(C)(2) allows the court to specify exchange locations, ensuring that the Muskegon Police Station provides a neutral and safe space for custody transitions.

Make-Up Parenting Time

Due to Emily's wrongful withholding of LDW and the court's prior reduction of my custodial rights, I request extended make-up parenting time from October 29th to November 29th, 2024. This will restore not only the 36 days LDW was withheld but also help mitigate the emotional harm caused by the reduction of my time with him. Additionally, the time that has been lost, due to the courts punitive reduction in parenting time, from 182.5 days a year, down to just 78, from July 17th 2024, until October 18th 2024, equates to 26 additional days of lost time from my son's life. During arguably the most important developmental stage in his life. That is a total of 62 total days that have been forcibly removed between LDW and me, egregious.

MCL 722.27(1)(e) allows the court to grant make-up parenting time when a parent has been wrongfully denied access to their child.

In *Foskett v. Foskett*, 247 Mich App 1 (2001), the court found that parenting time should be used to offset emotional damage caused by alienation. Increasing my time with LDW is necessary to restore his emotional balance.

"Consistent, uninterrupted parenting time is not only important for maintaining Lincoln's sense of security but is also critical for his long-term emotional development. Without regular access to both parents, LDW risks experiencing prolonged emotional distress, which can impact his ability to form healthy relationships in the future."

Co-Parenting Issues and Proposed Solutions

Emily's refusal to co-parent and her failure to communicate critical decisions regarding Lincoln's well-being have caused significant harm to him. To resolve these issues, I propose the following:

Mandated use of a co-parenting app AppClose to facilitate transparent communication about Lincoln's needs and prevent further miscommunication.

Co-parenting counseling or classes: I am willing to participate in counseling to improve communication and cooperation, demonstrating my commitment to Lincoln's best interests.

Conclusion

The heart of this motion is Lincoln's well-being, which has been jeopardized by Emily's ongoing pattern of alienation, manipulation, and refusal to co-parent. Immediate court action is necessary to ensure that LDW grows up in a stable, emotionally secure environment, with access to both parents in a balanced and fair arrangement. The requested relief is essential for restoring this balance and protecting Lincoln's future.

I ask this Court to grant the relief requested in this motion for the benefit of LDW and his long-term well-being, and ensure safeguards are in place to ensure Lincoln's immediate return. The potential for irreparable harm if LDW is retained abroad cannot be overstated, and this court's swift intervention is necessary to prevent a situation that may have long-lasting consequences on Lincoln's well-being."

REQUEST FOR EXPEDITED JUDGEMENT TO THE HONORABLE COURT:

I, **Andrew J. Pigors**, respectfully submit this Request for Expedited Judgement in the above-captioned matter. Given the urgent nature of the issues at hand, particularly the imminent international travel of the minor child, Lincoln David Watson, and the need for make-up parenting time due to the significant loss of time caused by the reduction of my custodial time, I

respectfully request this court expedite the decision to avoid potential irreparable harm to both the child and my parental rights.

1. Imminent International Travel:

The respondent, **Emily A. Watson**, has expressed her intent to take Lincoln on international travel to a non-Hague Convention country without providing crucial details, such as the exact destination, itinerary, or list of individuals accompanying the child. This lack of transparency raises significant concerns about the safety and well-being of Lincoln and prevents me from exercising my right to provide informed consent as his father. Furthermore, this international trip is set to occur during my scheduled parenting time, which already has been drastically reduced. This proposed trip could effectively eliminate my parenting time for an extended period, further severing my bond with Lincoln.

In light of these concerns, I assert that there is an **imminent risk of irreparable harm** to Lincoln's emotional and psychological stability if this court does not intervene. The lack of detailed information regarding the proposed trip is alarming, and any delay in adjudicating this matter could result in Lincoln being removed from the United States without adequate safeguards or oversight. Additionally, under **MCL 722.27(1)** and **MCR 3.207**, the court is vested with the authority to act swiftly in matters where the welfare of the child is at stake. Given the potential for an international abduction or other adverse outcomes, an expedited Judgement is crucial to determine the appropriateness and safety of the trip.

2. Need for Make-Up Parenting Time:

Since the court's last Judgement, my parenting time has been drastically reduced to **four overnights per month**, equating to approximately **24 hours of quality parenting time** when accounting for travel and sleep. This extreme reduction is inconsistent with the prior **50/50 shared custody arrangement**, where Lincoln thrived, both emotionally and developmentally, in my care. This reduction occurred without consideration of my ongoing commitment to Lincoln's well-being, financial stability, housing, and employment—all factors that have been firmly established.

The court is empowered under **MCL 722.27a** to order make-up parenting time to compensate for the lost time that has resulted from the significant reduction in my custodial time. In addition to the lost time caused by the current custody arrangement, **30+ days of parenting time were stripped** from me during a period where Lincoln was unlawfully withheld from me by the respondent. This withholding occurred before the current court order, and I have yet to be granted make-up time for that period, causing a continued erosion of the father-son relationship. The delay in addressing these issues compounds the damage to my relationship with Lincoln, especially at his formative developmental stage. **MCR 2.119(E)** allows for expedited hearings in matters where time is of the essence, and the need for urgent court intervention is clear. I am seeking immediate court intervention to prevent further harm to Lincoln's relationship with his father and to ensure that the statutory provisions favoring **frequent and continuing contact with both parents** are upheld. If this matter is not addressed promptly, the continued lack of meaningful parenting time will have lasting effects on Lincoln's well-being.

3. Potential for Irreparable Harm:

Without swift judicial action, the above-mentioned issues pose a serious risk of irreparable harm to Lincoln and to my parental rights. **MCR 3.207(C)(1)** explicitly states that the court may grant an expedited Judgement when the matter involves custody, parenting time, or the welfare of the minor child. Delaying these proceedings could result in a permanent loss of parenting time, emotional harm to Lincoln due to the instability of the current custodial arrangement, and the potential that Lincoln may be taken out of the country, beyond the jurisdiction of this court, without adequate legal safeguards.

Relief Requested

I respectfully request that this court:

1. Terminate the PPO immediately, as it was obtained through the manipulation of evidence and no longer serves any legitimate purpose.
2. Reopen and consolidate the PPO and custody cases to ensure that all matters affecting Lincoln's well-being are addressed in a single proceeding.
3. Award joint physical custody of , recognizing my consistent care and involvement in his life, as well as the emotional harm caused by Emily's refusal to co-parent.
4. Implement a week-on, week-off parenting time schedule with exchanges at the Muskegon Police Station, every Friday at 5:30 PM, ensuring Lincoln's stable and secure relationship with both parents.
5. Grant make-up parenting time from October 29th to November 29th, 2024, to restore the 36 days withheld by Emily and to address the emotional harm caused by the court's prior reduction of my custodial time.
6. Recalculate child support based on the updated joint custody arrangement and Emily's true financial situation, including income sources she has concealed.
7. Reimburse overpaid child support and reassign the arrears wrongly attributed to me back to Emily.
8. Appoint a Parenting Coordinator to facilitate conflict resolution between Emily and me, ensuring that all decisions regarding Lincoln's well-being are made in his best interests.
9. Mandate co-parenting counseling and use of a co-parenting app to improve communication between Emily and me, with Lincoln's best interests as the focus.
10. Block international travel to non-Hague Convention countries until all trip details are disclosed and appropriate legal safeguards are in place to ensure Lincoln's safe return.

"Given the substantial risk posed by the destination country's non-participation in the Hague Convention, I respectfully request that this travel be blocked until full details are disclosed and

Conclusion

I respectfully urge the court to expedite Judgement on these matters as the potential for irreparable harm looms. The well-being of Lincoln, my parental rights, and the preservation of our bond are at risk if immediate court intervention is not provided. Time is of the essence, and I request that this court schedule an expedited decision as soon as possible to address the aforementioned concerns.

WHEREFORE, I, Andrew J. Pigors, request that the court grant an expedited Judgement on the issues of international travel, make-up parenting time, and any other related matters to prevent irreparable harm to the minor child and myself, and to ensure that justice is served promptly and fairly.

Respectfully submitted,
Andrew J. Pigors

Exhibit List

1. Exhibit 2A: Photographs demonstrating the staged evidence, in and among my possessions, that were used to obtain the PPO.
2. Exhibit 2B: Documentation showing removal and staging of belongings to fabricate harassment claims.
3. Exhibit 5: Screenshots showing Tamara Ring/Snider joining the Nextdoor neighborhood to stalk my online presence at Emily's instruction. Violating the PPO, and harassing me.
4. Exhibit 6A: Appclose conversations where Emily ignores my requests to know ANY information regarding her "trip".
5. Exhibit 6B: AppClose messages showing Emily's refusal to co-parent.
6. Exhibit 6C: An affidavit that includes all the examples of Emily failing LDW, and not putting his best interests top priority.

X. CERTIFICATE OF SERVICE

I hereby certify that on this date, I served a true and correct copy of the foregoing **Ex Parte Motion to Reopen and Consolidate Custody and PPO Cases; Modify Custody, Parenting Time, Child Support; Terminate PPO; Request Forensic Analysis of Bank Accounts and Mental Health Evaluation of Defendant** on the Defendant, **Emily A. Watson**, by the following means:

- ☐ **U.S. Mail**
- ☐ **Certified Mail**
- ☐ **Email**
- ☐ **In-Person Delivery**
- ☐ **Other:** _____

Date: _____

Signature: _____

Name: Andrew J. Pigors